

Reserved On: 19.09.2024 vs Sanjay Kumar & Another on 25 September, 2024

Bench: Tarlok Singh Chauhan, Sushil Kukreja

1 Neutral Citation No. (2024:HHC:9092-DB) IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA Cr. Appeal No. 311 of 2014 Reserved on: 19.09.2024 Decided on: 25.09.2024

State of Himachal PradeshAppellant.

Versus Sanjay Kumar & another.Respondents.

Coram The Hon'ble Mr. Justice Tarlok Singh Chauhan, Judge. The Hon'ble Mr. Justice Sushil Kukreja, Judge.

W h e t h e r a p p r o v e d f o r r e p o r t i n g ? N o .

For the appellant: Mr. I.N. Mehta, Mr. Y.W. Chauhan, Senior Additional Advocates General, with Ms. Sharmila Patial, Mr. Navlesh Verma, Additional Advocates General, Mr. J.S. Guleria and Mr. Raj Negi, Deputy Advocate General.

For the respondent: Mr. Raman Prashar, Advocate.

Sushil Kukreja, Judge.

The instant appeal has been preferred by the appellant/State under Section 378 of the Code of Criminal Procedure against the impugned judgment, dated 21.04.2014, passed by learned Additional Sessions Judge-II, Kangra at Dharamshala, District Kangra, H.P., in S.C. (RBT) No. 5-G/VII/13/09, whereby the accused persons (respondents herein) were acquitted for the offences punishable under Section 498-A Whether reporters of Local Papers may be allowed to see the judgment?

2 Neutral Citation No. (2024:HHC:9092-DB) and 306 read with Section 34 of Indian Penal Code (for short "IPC").

2. The facts giving rise to the present appeal, as per the prosecution story, can be summarized as under:

2(a). On 22.11.2008 Smt. Pooja (deceased) got married with accused Sanjay Kumar according to Hindu rites and customs.

Thereafter, the deceased started residing with accused Sanjay Kumar at his residence, where accused Urmila, mother-in-law of the deceased also used to reside. As per the prosecution case, immediately after the marriage, the deceased was being maltreated and tortured by the accused persons. The deceased telephonically intimated her father, who convened Panchayat consisting of Smt. Saroj, Up-Pardhan, Shri Dharam Pal and Rajnish, who visited the house of the accused persons and on their persuasion the deceased was sent with accused Sanjay, but subsequently the accused persons did not allow the deceased to visit her parents' house. The deceased narrated to her mother, Smt. Reena Devi that she was thrashed with chimta (tongs), due to which she sustained injuries. The deceased was again sent back to the house of the accused persons on 05.05.2009 and prior to 05.05.2009 she was being ill-treated by the accused persons. On 21.05.2009, the deceased again intimated that she was being

3 Neutral Citation No. (2024:HHC:9092-DB) maltreated by the accused persons and on 22.05.2009 a telephonic message was received at village Nahan Nagrota that the deceased had committed suicide by hanging herself with dupatta from ceiling. Shri Vijay Kumar, i.e., father of the deceased .

(complainant) alongwith other family members rushed to the in-

laws' house of the deceased, where they found her dead body hanging with ceiling. The statement of the complainant under Section 154 Cr.P.C. was recorded by the police, whereupon FIR against the accused persons was registered. The dupatta, which was used by the deceased for hanging herself was taken into possession by the police and sealed in a parcel with three seals, having seal impression 'A'. The police also took into possession the clothes of accused Sanjay, i.e., jean pants, shirt and parna, which were having blood stains of the deceased. Police also took into possession the shoes, which were lying near the double bed where the corpse of the deceased was found hanging. The police completed all the codal formalities, viz. prepared the spot map, recorded the statements of the witnesses, photographed the place of occurrence and got conducted the post mortem on the dead body of the deceased. As per the police investigation, prior to her death, the deceased had informed her parents, i.e., Vijay Kumar (father of the deceased/complainant) and Reena Devi (mother of 4 Neutral Citation No. (2024:HHC:9092-DB) the deceased) that accused persons were subjecting her to physical torture. After completion of the investigation, police presented the chargesheet against both the accused before the learned Trial Court.

.

3. The prosecution, in order to prove its case, examined fourteen witnesses. Statements of the accused persons under Section 313 Cr.P.C. were recorded, wherein they claimed innocence and denied the prosecution case, however, in defence they did not lead any evidence.

4. The learned Trial Court, vide impugned judgment dated 21.04.2014 acquitted both the accused persons for the offences punishable under Sections 498-A, 306 read with Section 34 IPC, hence the instant appeal preferred by the appellant/State.

5. The learned Senior Additional Advocate General for the appellant/State contended that the impugned judgment is against the law and facts, based upon mis-appreciation of evidence, which ultimately resulted into miscarriage of justice, as such the same is liable to set-aside. He has further contended that the learned Trial Court has failed to appreciate the evidence in its right and true perspective and the impugned judgment is based on hypothetical reasonings, surmises and conjectures. Lastly, he submitted that the impugned judgment of acquittal passed by the learned Trial 5 Neutral Citation No. (2024:HHC:9092-DB) Court be quashed and set-aside by allowing the instant appeal and the accused persons be convicted.

6. Conversely, the learned Counsel for the respondents/accused persons contended that the judgment .

rendered by the learned Trial Court is the result of proper appreciation of the material on record and the same was passed after appreciating the evidence and law in its right and true perspective. He has further contended that nothing has come on record against the accused persons and the learned Trial Court has passed a well reasoned judgment, which does not require any interference, thus the instant appeal, which sans merits, be dismissed.

7. We have heard the learned Senior Additional Advocate General for the appellant/State, learned Counsel for the respondents/accused persons and carefully examined the entire records.

8. It is well settled by the Hon'ble Apex Court in a catena of decisions that an Appellate Court has full power to review, re-

appreciate and reconsider the evidence upon which the order of acquittal is founded. However, Appellate Court must bear in mind that in case of acquittal there is double presumption in favour of the accused. Firstly, the presumption of innocence is available to him 6 Neutral Citation No. (2024:HHC:9092-DB) under the fundamental principle of criminal jurisprudence that every person shall be presumed to be innocent unless he is proved guilty by a competent Court of law. Secondly, the accused having secured his acquittal, the presumption of his innocence is further .

reinforced, reaffirmed and strengthened by the trial Court. Further, if two reasonable views are possible on the basis of the evidence on record, the Appellate Court should not disturb the finding of acquittal recorded by the trial Court.

9. The scope of power of Appellate Court in case of appeal against acquittal has been dealt with by the Hon'ble Apex Court in Muralidhar alias Gidda & another Vs. State of Karnatka reported in (2014) 5 SCC 730, which reads as under:

"10. Lord Russell in Sheo Swarup[1], highlighted the approach of the High Court as an appellate court hearing the appeal against acquittal. Lord Russell said, "... the High Court should and will always give proper weight and consideration to such matters as (1) the views of the trial Judge as to the credibility of the witnesses; (2) the presumption of innocence in favour of the accused, a presumption certainly not weakened by the fact that he has been acquitted at his trial; (3) the right of the accused to the benefit of any doubt;

and (4) the slowness of an appellate court in disturbing a finding of fact arrived at by a Judge who had the advantage of seeing the witnesses." The opinion of the Lord Russell has been followed over the years.

11. As early as in 1952, this Court in Surajpal Singh[2] while dealing with the powers of the High Court in an appeal against acquittal under Section 417 of the Criminal Procedure Code observed:

"7.....the High Court has full power to review the 7 Neutral Citation No. (2024:HHC:9092-DB) evidence upon which the order of acquittal was founded, but it is equally well settled that the presumption of innocence of the accused is further reinforced by his acquittal by the trial court, and the findings of the trial court which had the advantage of seeing the witnesses and hearing their evidence can be reversed only for very substantial and compelling reasons."

.

12. The approach of the appellate court in the appeal against acquittal has been dealt with by this Court in Tulsiram Kanu [3], Madan Mohan Singh [4], Atley [5] , Aher Raja Khima [6], Balbir Singh [7], M.G. Agarwal [8], Noor Khan [9], Khedu Mohton [10], Shivaji Sahabrao Bobade [11], Lekha Yadav [12], Khem Karan [13], Bishan Singh [14], Umedbhai Jadavbhai [15], K. Gopal Reddy [16], Tota Singh [17], Ram Kumar [18], Madan Lal [19], Sambasivan [20], Bhagwan Singh [21], Harijana Thirupala [22], C. Antony [23], K. Gopalakrishna [24], Sanjay Thakran [25] and Chandrappa [26]. It is not necessary to deal with these cases individually. Suffice it to say that this Court has consistently held that in dealing with appeals against acquittal, the appellate court must bear in mind the following:

(i) There is presumption of innocence in favour of an accused person and such presumption is strengthened by the order of acquittal passed in his favour by the trial court,

(ii) The accused person is entitled to the benefit of reasonable doubt when it deals with the merit of the appeal against acquittal,

(iii) Though, the power of the appellate court in considering the appeals against acquittal are as extensive as its powers in appeals against convictions but the appellate court is generally loath in disturbing the finding of fact recorded by the trial court. It is so because the trial court had an advantage of seeing the demeanor of the

witnesses. If the trial court takes a reasonable view of the facts of the case, interference by the appellate court with the judgment of acquittal is not justified. Unless, the conclusions reached by the trial court are palpably wrong or based on erroneous view of the law or if such conclusions are allowed to stand, they are likely to result in grave injustice, the reluctance on the part of the appellate court in interfering with such conclusions is fully justified, and

(iv) Merely because the appellate court on re-

appreciation and re-evaluation of the evidence is 8 Neutral Citation No. (2024:HHC:9092-DB) inclined to take a different view, interference with the judgment of acquittal is not justified if the view taken by the trial court is a possible view. The evenly balanced views of the evidence must not result in the interference by the appellate court in the judgment of the trial court."

.

10. The Hon'ble Supreme Court in *Rajesh Prasad vs. State of Bihar & another*, (2022) 3 SCC 471, observed as under:

"31. The circumstances under which an appeal would be entertained by this Court from an order of acquittal passed by a High Court may be summarized as follows:

31.1. Ordinarily, this Court is cautious in interfering with an order of acquittal, especially when the order of acquittal has been confirmed up to the High Court. It is only in rarest of rare cases, where the High Court, on an absolutely wrong process of reasoning and a legally erroneous and perverse approach to the facts of the case, ignoring some of the most vital facts, has acquitted the accused, that the same may be reversed by this Court, exercising jurisdiction under Article 136 of the Constitution. [State of U.P. v. Sahai (1982) 1 SCC 352] Such fetters on the right to entertain an appeal are prompted by the reluctance to expose a person, who has been acquitted by a competent court of a criminal charge, to the anxiety and tension of a further examination of the case, even though it is held by a superior court. [Arunchalam v. P.S.R. Sadhanantham (1979) 2 SCC 297] An appeal cannot be entertained against an order of acquittal which has, after recording valid and weighty reasons, has arrived at an unassailable, logical conclusion which justifies acquittal. [State of Haryana vs. Lakhbir] 31.2. However, this Court has on certain occasions, set aside the order of acquittal passed by a High Court. The circumstances under which this Court may entertain an appeal against an order of acquittal and pass an order of conviction, may be summarized as follows:

31.2.1. Where the approach or reasoning of the High Court is perverse;

9 Neutral Citation No. (2024:HHC:9092-DB)

(a) Where incontrovertible evidence has been rejected by the High Court based on suspicion and surmises, which are rather unrealistic. [State of Rajasthan v.

Sukhpal Singh (1983) 1 SCC 393] For example, where direct, unanimous accounts of the eyewitnesses, were discounted without cogent reasoning. [State of U.P. vs. Shanker 1980 Supp .

SCC 489]

(b) Where the intrinsic merits of the testimony of relatives, living in the same house as the victim, were discounted on the ground that they were "interested" witnesses. [State of U.P. v. Hakim Singh

(c) Where testimony of witnesses had been disbelieved by the High Court, on an unrealistic conjecture of personal motive on the part of witnesses to implicate the accused, when in fact, the witnesses had no axe to grind in the said matter. [State of Rajasthan v.

Sukhpal Singh (1983) 1 SCC 393]

(d) Where dying declaration of the deceased victim was rejected by the High Court on an irrelevant ground that they did not explain the injury found on one of the persons present at the site of occurrence of the crime. [Arunachalam vs. P.S.R. Sadhanantham (1979) 2 SCC 297]

(e) Where the High Court applied an unrealistic standard of "implicit proof" rather than that of "proof beyond reasonable doubt" and therefore evaluated the evidence in a flawed manner. [State of U.P. v. Ranjha Ram (1986) 4 SCC 99]

(f) Where the High Court rejected circumstantial evidence, based on an exaggerated and capricious theory, which were beyond the plea of the accused; [State of Maharashtra v. Champalal Punjaji Shah (1981) 3 SCC 610]

(g) Where the High Court acquitted the accused on the ground that he had no adequate motive to commit the offence, although, in the said case, there was strong direct evidence establishing the guilt of the accused, thereby making it necessary on the part of the prosecution to establish "motive". [State of A.P. v. Bogam Chandraiah (1990) 1 SCC 445] 31.2.2. Where acquittal would result is gross miscarriage of justice;

(a) Where the findings of the High Court, disconnecting the accused persons with the crime, were based on a perfunctory consideration of evidence, [State of U.P. v. Pheru Singh 1989 Supp (1) SCC] or based on extenuating circumstances which were purely based in imagination and fantasy [State of U.P. v. Pussu (1983) 3 SCC 502] 10 Neutral Citation No. (2024:HHC:9092-DB)

(b) Where the accused had been acquitted on ground of delay in conducting trial, which delay was attributable not to the tardiness or indifference of the prosecuting agencies, but to the conduct of the accused himself; or where accused had been acquitted on ground of delay in conducting trial relating to an offence which is not of a trivial nature. [State of Maharashtra v.

Champalal Punjaji Shah (1981) 3 SCC 610]."

11. In *H.D. Sundara & others vs. State of Karnataka*, (2023) 9 SCC 581, the Hon'ble Supreme Court has observed that the appellate court cannot overturn acquittal only on the ground that after re-appreciating evidence, it is of the view that the guilt of the accused was established beyond a reasonable doubt. The relevant portion of the above judgment is as under:

"8. In this appeal, we are called upon to consider the legality and validity of the impugned judgment rendered by the High Court while deciding an appeal against acquittal under Section 378 of the Code of Criminal Procedure, 1973 (for short "CrPC"). The principles which govern the exercise of appellate jurisdiction while dealing with an appeal against acquittal under Section 378 CrPC can be summarized as follows:

8.1. The acquittal of the accused further strengthens the presumption of innocence;

8.2. The appellate court, while hearing an appeal against acquittal, is entitled to reappreciate the oral and documentary evidence;

8.3. The appellate court, while deciding an appeal against acquittal, after reappreciating the evidence, is required to consider whether the view taken by the trial court is a possible view which could have been taken on the basis of the evidence on record;

8.4. If the view taken is a possible view, the appellate court cannot overturn the order of acquittal on the ground that another view was also possible; and 8.5. The appellate court can interfere with the order of acquittal only if it comes to a finding that the only conclusion which can be recorded on the basis of the 11 Neutral Citation No. (2024:HHC:9092-DB) evidence on record was that the guilt of the accused was proved beyond a reasonable doubt and no other conclusion was possible.

9. Normally, when an appellate court exercises appellate jurisdiction, the duty of the appellate court is to find out whether the verdict which is under challenge is correct or incorrect in law and on facts. The appellate court .

normally ascertains whether the decision under challenge is legal or illegal. But while dealing with an appeal against acquittal, the appellate court cannot examine the impugned judgment only to find out whether the view taken was correct or incorrect. After re-appreciating the oral and documentary evidence, the appellate court must first decide whether the trial court's view was a possible view. The appellate court cannot overturn acquittal only on the ground that after re-appreciating evidence, it is of the view that the guilt of the accused was established beyond a reasonable doubt. Only recording such a conclusion an order of acquittal cannot be reversed unless the appellate court also

concludes that it was the only possible conclusion. Thus, the appellate court must see whether the view taken by the trial court while acquitting an accused can be reasonably taken on the basis of the evidence on record. If the view taken by the trial court is a possible view, the appellate court cannot interfere with the order of acquittal on the ground that another view could have been taken."

12. Thus, the law on the issue can be summarized to the effect that in exceptional cases where there are compelling circumstances, and the judgment under appeal is found to be perverse, the appellate court can interfere with the order of acquittal. Further, if two views were possible on the basis of the evidence on record, the Appellate Court should not disturb the finding of acquittal recorded by the Trial Court, merely, because the Appellate Court could have arrived at a different conclusion than that of the Trial Court.

13. The burden of proof in a criminal trial never shifts and it 12 Neutral Citation No. (2024:HHC:9092-DB) is always the burden of the prosecution to prove its case beyond reasonable doubt on the basis of acceptable evidence. In fact, it is a settled principle of criminal jurisprudence that the more serious the offence, the stricter the degree of proof required, since a higher .

degree of assurance is required to convict the accused.

14. In the instant case, the accused persons had been tried under Section 498-A, 306 read with Section 34 IPC for committing cruelty and abetment of suicide. Section 306 incorporates the offence of abetment of suicide and the main ingredients of the offence are the suicidal death and abetment thereof. The suicide is an intentional killing of oneself. The relevant provisions, which are now required to be looked into, are reproduced herein below:-

Section 306 of Indian Penal Code reads as under :

"If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, thereby showing the commission of suicide must be pursuant to the abetment committed by any person. It is the case of the prosecution that the husband abetted the deceased wife to commit suicide.

15. Section 113A of the Indian Evidence Act, 1872 relates to presumption as to abetment of suicide by a married woman, which reads as follows:-

"113A. Presumption as to abetment of suicide by a married women.- When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide within a period of seven years from the date of her marriage and that her husband or such relative 13 Neutral Citation No. (2024:HHC:9092-DB) of her husband had subjected her to cruelty, the court may presume, having regard to all the other circumstances of the case, that such suicide had been abetted by her husband or by such relative of her husband.

Explanation- For the purposes of this section, "cruelty" shall have the same meaning as in section 498A of the Indian Penal Code (45 of 1860)."

16. Explanation to Section 498-A IPC defines cruelty caused on wife by husband or his relatives as follows:-

1[Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation.-For the purposes of this section, "cruelty means"--

(a) any willful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.]"

17. To substantiate the charges framed against the respondents/accused persons and to bring home the guilt of the accused, the prosecution examined as many as 14 witnesses.

However, the case of the prosecution mainly rests upon the statements of PW-1, Shri Vijay Kumar (father of the deceased/complainant), PW-2, Smt. Reena Devi (mother of the deceased), PW-3, Smt. Saroj, the then Pradhan of Nahan Nagrota Panchayat, PW-4, Shri Rajnish, the then Ward Panch of Gram Panchayat Nahan Nagrota and PW-5, Dharam Pal, the then Up-

14 Neutral Citation No. (2024:HHC:9092-DB) Pradhan of Panchayat Nahan Nagrota.

18. Shri Vijay Kumar, father of the deceased (complainant), who appeared in the witness-box as PW-1, deposed that he had four children, two sons and two daughters, and elder daughter was .

the deceased, who got married with accused Sanjay Kumar on 22.11.2008 according to Hindu rites. He has further deposed that after one month of the marriage, the accused Sanjay and accused Urmila (mother of accused Sanjay) started beating and torturing the deceased on the pretext that she did not know any work. The deceased was tortured on trifle matters and on 28.04.2009 accused Sanjay telephoned them and asked to come to their house alongwith Panchayat for settling the matter. He alongwith Panchayat members, Smt. Saroj (PW-3), Pradhan of Gram Panchayat, Shri Dharam Pal (PW-5), Up-Pradhan and Shri Rajnish (PW-4), Ward Panch went to the house of the accused persons.

As per this witness, he apprised the Panchayat members that accused persons used to torture the deceased, the deceased was not allowed to go to her parents' house and accused Urmila used to taunt the deceased that she did not know any work. It was decided to send the deceased with him (PW-1) and it was directed to send the deceased back after one week. He has stated that when the deceased came to his house, she narrated that accused 15 Neutral Citation No. (2024:HHC:9092-DB) persons used to beat her by inflicting injuries with tongs and she showed her body parts with injury marks. He has further stated that the deceased was deprived sufficient food. On 05.05.2009 he alongwith the deceased went to leave her in her in-laws' house. As .

per this witness, earlier he had consoled the deceased that everything would be fine and she should try to adjust in the family.

He has stated that on 21.05.2009 the deceased telephoned her mother (PW-2) and disclosed that the accused persons were beating and torturing her and she was advised to come to their house. When he tried to talk with accused Sanjay, he started using filthy language and told that neither sufficient jewellery and dowry articles nor money was given in the marriage. On 22.05.2009 his bother-in-law informed that around 10:00 a.m. the deceased had committed suicide by hanging herself in the house of in-laws in a room of upper storey with her dupatta. As per this witness, the deceased had committed suicide due to the atrocious behavior of the accused persons and the accused persons forced her to commit suicide. This witness has further stated that he, alongwith family members, Panchayat and respectable members of the village, went to the house of the accused persons where he had seen the incident of hanging. Police came on the spot and recorded his statement, which is Ex. PW-1/A. 16 Neutral Citation No. (2024:HHC:9092-DB)

19. PW-2, Smt. Reena Devi, mother of the deceased, deposed that she had four children, two sons and two daughters, and the deceased was elder daughter. The deceased was married to accused Sanjay Kumar on 22.11.2008 according to Hindu rites, .

but after one month of the marriage, the accused persons started beating and torturing the deceased on the pretext that she did not know any work. He has further stated that the deceased was being tortured on trifle matters and on 28.04.2009 accused Sanjay telephoned them to come to their house alongwith Panchayat to settle the matter. Her husband (PW-1) alongwith Panchayat members, Smt. Saroj (PW-3), Pradhan of Gram Panchayat, Shri Dharam Pal (PW-5), Up-Pradhan and Shri Rajnish (PW-4), Ward Panch went to the house of the accused persons and the panchayat sent the deceased to their house. The deceased narrated to her that the accused persons used to beat her by tongs and she showed her body parts having injury marks. The deceased was not allowed to talk on phone with them and she was not provided sufficient food. On 05.05.2009 her husband (PW-1) went with the deceased to leave her in her in-laws' house. As per this witness, earlier she consoled the deceased that everything would be fine and she should try to adjust in the family. On 21.05.2009 the deceased telephoned her and disclosed that the 17 Neutral Citation No. (2024:HHC:9092-DB) accused persons were beating and torturing her and she asked her to come and take her to her parents' house. She has stated that when they tried to talk with accused Sanjay, he started using filthy language and also told that neither jewellery and dowry articles nor .

any money was given in the marriage. On 22.05.2009 the brother-

in-law of her husband telephonically informed that around 10:00 a.m., the deceased had committed suicide by hanging herself with dupatta in a room of the upper storey in her in-laws' house. As per this witness, the deceased had committed suicide due to atrocious behavior of the accused persons and the accused persons forced her to commit suicide. She has further stated that she alongwith her family members, Panchayat and respectable members of the village went to the in-laws' house of the deceased and seen the incident of hanging and the police recorded her statement.

20. Smt. Saroj, the then Pradhan of Nahan Nagrota Panchayat, who appeared in the witness-box as PW-3, deposed that the deceased was married with accused Sanjay according to Hindu rites and on 28.04.2009 the complainant (PW-1) came to her and complained that the deceased was being tortured by the accused persons. She has further stated that she was told that the deceased was tortured and beaten for bringing insufficient dowry.

She was also informed that the mother-in-law of the deceased, i.e., 18 Neutral Citation No. (2024:HHC:9092-DB) accused Urmila, used to taunt the deceased that she did not know any household work. As per this witness, she alongwith other Panchayat members were requested to accompany the complainant to the in-laws' house of the deceased for settling the .

matter. She alongwith Dharam Pal, Up-Pradhan (PW-5), Rajnish, Ward Member (PW-4) went to the house of the accused persons.

The panchayat members of that panchayat were also present there and it was decided that the complainant would bring the deceased back to her in-laws' house after one week. She has further stated that on 05.05.2009 the complainant left the deceased in her in-laws house and on 22.05.2009 the complainant told her that he was informed that the deceased had committed suicide by hanging herself. She alongwith Up-Pradhan Dharam Pal, Ward Panch Rajnish and other relatives of the complainant went to the in-laws' house of the deceased, where they found the corpse of the deceased hanging in a room with dupatta and her feet were touching the floor. Dupatta was tied on her neck and the police had cut the same. This witness has stated that the deceased had committed suicide due to the atrocious behavior of the accused persons, as they used to taunt her for bringing insufficient dowry.

21. PW-4, Shri Rajnish, the then Ward Panch, Gram Panchayat Nahan Nagrota, deposed that in November, 2008, the 19 Neutral Citation No. (2024:HHC:9092-DB) deceased was married to accused Sanjay according to Hindu rites and on 28.04.2009 the complainant (father of the deceased) came to him and told that the deceased was being tortured by the accused persons. He alongwith Pradhan Saroj (PW-3), Up-

.

Pradhan Dharam Pal (PW-5) went to the house of the accused persons, where panchayat members of Dontha Panchayat were already present. As per this witness, the deceased did not say anything

against the accused persons. He has further deposed that the panchayat gave one week's time to both the accused persons as well as to the deceased and thereafter the parents of the deceased took her with them to their house. This witness was declared hostile and was subjected to extensive cross-

examination, but nothing favourable could be elicited from his cross-examination.

22. Shri Dharam Pal, the then Up-Pradhan of Panchayat Nahan Nagrota, while appearing in the witness-box as PW-5, deposed that on 28.04.2009 the complainant came to him and divulged that her daughter (the deceased) was being harassed by the accused persons. The complainant further divulged that accused persons used to demand dowry and the deceased was being tortured by her mother-in-law (accused Urmila) on the pretext that the deceased did not know any household work. He, 20 Neutral Citation No. (2024:HHC:9092-DB) alongwith the complainant, Pradhan Saroj (PW-3) and other relatives of the deceased went to the house of the accused persons, where panchayat members of Dontha Panchayat were already present. As per this witness, the allegations against the .

accused persons were that they did not send the deceased to her parental house and she was not allowed to make telephonic calls to her parents. It was decided in the panchayat to send the deceased to her parental house for a week and she would return after a week. On 22.05.2009 the complainant told him that he was telephonically informed that the deceased had committed suicide by hanging herself. He alongwith Pradhan Saroj (PW-3), complainant (PW-1) and other members went to the house of the accused persons. He has further stated that mother of the deceased (PW-2) told him that on 20.05.2009 the deceased telephoned her and told that her husband used to beat her for not bringing any jewellery articles and cash in the marriage. On reaching the house of the accused persons, they found the corpse of the deceased hanging with dupatta tied on her neck and the police was also present there. This witness, in his cross-

examination, admitted that during the meeting the deceased had not leveled any allegations against the accused persons.

23. PW-14, Dr. Kulbhushan Sood, who alongwith Dr. Vijay 21 Neutral Citation No. (2024:HHC:9092-DB) Singh Chib, conducted the postmortem examination of the deceased on 23.05.2009, at 03:00 p.m., opined that the deceased had died due to asphyxia and postmortem report in this regard is Ex. PW-14/A. .

24. We have closely scrutinized the statements of PW-1, Shri Vijay Kumar (father of the deceased/complainant), PW-2, Smt. Reena Devi (mother of the deceased), PW-3, Smt. Saroj, the then Pradhan of Nahan Nagrota Panchayat, PW-4, Shri Rajnish, the then Ward Panch of Gram Panchayat Nahan Nagrota and PW-5, Dharam Pal, the then Up-Pradhan of Panchayat Nahan Nagrota and from the perusal of their statements, it has not been established that the accused persons were maltreating or harassing the deceased on account of bringing insufficient dowry or to meet his unlawful demands of dowry. There is no direct evidence that accused persons aided or instigated the deceased to commit suicide or entered into any conspiracy to aid her in committing

suicide.

25. In Ghulam Mustafa vs State of Uttarakhand, AIR 2015 SC 3101, the Hon'ble Supreme Court held that a casual remark or something said in a routine way or in usual conversation should not be construed or misunderstood to mean 'abetment.' A conviction on mere allegation of harassment without any positive 22 Neutral Citation No. (2024:HHC:9092-DB) action in proximity to the time of occurrence on the part of accused that led a person to commit suicide is not sustainable under section 306 IPC.

26. Again, in Gurucharan vs State of Punjab, AIR 2017 SC .

74, it has been held that to constitute the offence under section 306 IPC, there should be a live link between abetment and suicide and the intention and involvement of the accused to aid or instigate the commission of suicide is imperative. So far as the grievance of dowry demand and consequential harassment is concerned, it should not be general in nature and there should be some specific incident and should have provocative capability to drive the deceased to such distressed state, mental and physical that she could elect to end her life.

27. In Nachhatter Singh vs State of Punjab, (2011) 11 SCC 542, the Court observed that in case of abetment of suicide by married woman, the cruelty and harassment meted out must be of nature to drive a person of common prudence to commit suicide.

Every quarrel between husband and wife which results in suicide cannot be taken to abetment by husband. For abetment, standard of reasonable or practical woman as compared to headstrong and over sensitive one is to be applied.

28. In Sohan Raj Sharma Vs. State of Haryana, AIR 2008 23 Neutral Citation No. (2024:HHC:9092-DB) Supreme Court 2108, the Hon'ble Supreme Court held:-

"9. In State of West Bengal Vs. Orilal Jaiswal (AIR 1994 SC 1418) this Court has observed that the courts should be extremely careful in assessing the facts and circumstances of each case and the evidence adduced in the trial for the purpose of finding whether the cruelty .

meted out to the victim had in fact induced her to end her life by committing suicide. If it transpires to the Court that a victim committing suicide was hypersensitive to ordinary petulance, discord and differences in domestic life quite common to the society to which the victim belonged and such petulance discord and differences were not expected to induce a similarly circumstanced individual in a given society to commit suicide, the conscience of the Court should not be satisfied for basing a finding that the accused charged of abetting the offence of suicide should be found guilty.

10. Section 107 IPC defines abetment of a thing. The offence of abetment is a separate and distinct offence provided in the Act as an offence. A person abets the doing of a thing when (1) he instigates any person to do that thing; or (2) engages with one or more other persons in any conspiracy for the doing of that thing; or (3) intentionally aids, by act or illegal omission, the doing of that thing. These things are essential to complete abetment as a crime. The word "instigate"

literally means to provide, incite, urge on or bring about by persuasion to do anything. The abetment may be by instigation, conspiracy or intentional aid, as provided in the three clauses of Section 107. Section 109 provides that if the act abetted is committed in consequence of abetment and there is no provision for the punishment of such abetment, then the offender is to be punished with the punishment provided for the original offence.

'Abetted' in Section 109 means the specific offence abetted. Therefore, the offence for the abetment of which a person is charged with the abetment is normally linked with the proved offence.

11. In cases of alleged abetment of suicide there must be proof of direct or indirect acts of incitement to the commission of suicide. The mere fact that the husband treated the deceased-wife with cruelty is not enough. [See Mahinder Singh Vs. State of M.P. (1955 AIR SCW 4570)]."

29. In Harjit Singh Vs. State of Punjab, AIR 2006 Supreme Court 680, it is held as under:-

24 Neutral Citation No. (2024:HHC:9092-DB) "26. Before invoking the provisions of Section 306 IPC, it is necessary to establish that : (1) the deceased committed suicide, and (ii) she had been subjected to cruelty within the meaning of Section 498 A IPC.

27. Only in the event those facts are established, a presumption in terms of Section 113 A of the Indian Evidence Act could be raised. In the instant case, .

the prosecution has not been able to prove that the deceased was subjected to cruelty within the meaning of Section 498 A, IPC. No case that the deceased committed suicide was also made out."

30. The legal position has been reiterated by the Hon'ble Supreme Court in Mariano Anto Bruno and another Vs. Inspector of Police, AIR 2022 Supreme Court 4994, wherein it has been held as follows:-

r to " 25. The ingredients of Section 306 IPC have been extensively laid out in M. Arjunan Vs. State, represented by its Inspector of Police 7 which are as under:-

"The essential ingredients of the offence under Section 306 IPC are: (i) the abetment; (ii) the intention of the accused to aid or instigate or abet the deceased to commit suicide. The act of the accused, however, insulting the deceased by using abusive language will not, by itself, constitute the abetment of suicide. There should be

evidence capable of suggesting that the accused intended by such act to instigate the deceased to commit suicide. Unless the ingredients of instigation/abetment to commit suicide are satisfied, accused cannot be convicted under Section 306 IPC."

26. In order to convict an accused under Section 306 IPC, the state of mind to commit a particular crime must be visible with regard to determining the culpability. With regard to the same, a two-judge bench of this Court in Ude Singh & Ors. State of Haryana observed as under:-

"16. In cases of alleged abetment of suicide, there must be a proof of direct or indirect act/s of incitement to the commission of suicide. It could hardly be disputed that the question of cause of a suicide, particularly in the context of an offence of abetment of suicide, remains a vexed one, involving multifaceted and complex attributes of human behavior and responses/reactions. In the case of accusation for abetment of suicide, the Court would be looking for cogent and convincing proof of the act/s of incitement to the commission of suicide. In the case of suicide, 25 Neutral Citation No. (2024:HHC:9092-DB) mere allegation of harassment of the deceased by another person would not suffice unless there be such action on the part of the accused which compels the person to commit suicide; and such an offending action ought to be proximate to the time of occurrence. Whether a person has abetted in the commission of suicide by another or not, could only be gathered from the facts and circumstances of each case.

.

16.1. For the purpose of finding out if a person has abetted commission of suicide by another; the consideration would be if the accused is guilty of the act of instigation of the act of suicide. As explained and reiterated by this Court in the decisions above-

referred, instigation means to goad, urge forward, provoke, incite or encourage to do an act. If the persons who committed suicide had been hypersensitive and the action of accused is otherwise not ordinarily expected to induce a similarly circumstanced person to commit suicide, it may not be safe to hold the accused guilty of abetment of suicide. But, on the other hand, if the accused by his acts and by his continuous course of conduct creates a situation which leads the deceased perceiving no other option except to commit suicide, the case may fall within the four-corners of Section 306 IPC. If the accused plays an active role in tarnishing the self- esteem and self-respect of the victim, which eventually draws the victim to commit suicide, the accused may be held guilty of abetment of suicide. The question of mens rea on the part of the accused in such cases would be examined with reference to the actual acts and deeds of the accused and if the acts and deeds are only of such nature where the accused intended nothing more than harassment or snap show of anger, a particular case may fall short of the offence of abetment of suicide. However, if the accused kept on irritating or annoying the deceased by words or deeds until the deceased reacted or was provoked, a particular case may be that of abetment of suicide. Such being the

matter of delicate analysis of human behaviour, each case is required to be examined on its own facts, while taking note of all the surrounding factors having bearing on the actions and psyche of the accused and the deceased."

31. In *Hans Raj Vs. State of Haryana*, (2004) 12 SCC 257, the Supreme Court held that the nature of presumption under Section 113A is discretionary in the sense that from the mere fact 26 Neutral Citation No. (2024:HHC:9092-DB) that the wife committed suicide within 07 years of marriage and that she had been subjected to cruelty by the husband, there will be no automatic presumption that the suicide had been abetted by the husband.

.

32. In the case on hand, it has come in the evidence on record that except for the own parents of the deceased, none of the villagers from the accused persons or the deceased had appeared in the witness-box to state that they had seen the deceased being maltreated and tortured. The complainant, Vijay Kumar, who is the father of the deceased, had admitted in his cross-examination that till the time of the death of her daughter, he had not reported the matter to his panchayat or to the panchayat of the accused persons. Moreover, it has also come on record that PW-1, Vijay Kumar, had talked to the deceased lastly on 05.05.2009, whereas the suicide was committed on 22.05.2009 and during this gap of about 16 days, the deceased had never informed his father about any ill-treatment at the hands of the accused persons. Both PW-1 & PW-2 also admitted that they had advised their deceased daughter to stay at her matrimonial house since she stood married to accused Sanjay. Though, PW-2 stated that the deceased was being beaten with chimta (tongs) when she failed to perform the domestic work, however, neither the deceased 27 Neutral Citation No. (2024:HHC:9092-DB) during her lifetime, nor her mother had reported to anyone about the fact that she was being beaten by chimta. The aforesaid witnesses have made lot of improvements in their statements.

Though, in their statements they have stated that the accused .

used to torture the deceased, however, they have admitted that no complaint, whatsoever, to this effect was submitted by the deceased during her life time or by them prior to the death of the deceased with the police, panchayat or with any other authority.

33. Furthermore, the plea of the defence is also strengthened by the cross-examination of the parents of the deceased, where they admitted that for the first time in six months of the marriage, panchayat was called by accused Sanjay and not by the complainant party. Even the cross-examination of PW-3, Saroj, the then Pradhan of Nahan Nagrota Panchayat, i.e., the panchayat of the accused persons, reveals that neither the deceased, during her lifetime nor her parents have ever filed any complaint prior to 28.04.2009. The prosecution has also failed to prove the allegations that the food was not provided by the accused persons to the deceased. The allegation that the accused persons were demanding dowry has not been established by the prosecution, as both the parents of the deceased admitted that the accused persons have never demanded any dowry articles from 28 Neutral Citation No. (2024:HHC:9092-DB) them at the time of

engagement, marriage and after the marriage.

34. Thus, in view of the aforesaid authoritative pronouncements of Hon'ble Supreme Court, if the Court examines the allegations made in this case, there is no direct evidence of .

cruelty inflicted by the present accused persons against the deceased. The facts suggest that there may have some strained relationship between the accused persons and the deceased that does not mean that they inflicted physical and mental torture upon the deceased which led her to commit suicide. There is no principle of law that wherever wife commits suicide, the husband or his family members would bear the responsibility and would be held liable. The mere fact that woman had committed suicide within six months of her marriage and that she had been subjected to cruelty by her husband, does not automatically give rise to the presumption that the suicide had been abetted by her husband or by her in laws. No specific incident of maltreatment and cruelty was disclosed or reported either to the police or to the local panchayat or to any other authority before her death by the deceased or her parents/relatives. Therefore, the general allegations of harassment cannot be sufficient to hold the accused persons guilty for the offence of abetment of suicide. The prosecution has failed to establish positive act on the part of the accused persons to 29 Neutral Citation No. (2024:HHC:9092-DB) instigate or to compel the deceased to commit suicide. The allegations made by the parents of the deceased are general in nature and no specific instance of the alleged maltreatment or cruelty has been given by them, which can be construed as cruelty .

or abetment to commit suicide on the part of the accused.

35. The prosecution has failed to examine any independent witness to prove that any demand of dowry was made by the accused persons in their presence. There is no satisfactory material on record to prove cruelty and harassment with the deceased before the incident or abetment in proximity of time for committing suicide. To attract the offence under Section 306 IPC, the alleged cruelty, instigation or encouragement by accused should not only be proved by prosecution but also be of such nature which leaves no option to the deceased except to commit suicide. There is no evidence led by prosecution that there was abetment of such grave nature which was likely to drive the deceased to commit suicide. The suicidal death in this case cannot be due to any illegal act or illegal omission or instigation, by anybody else. It may be the deceased's own act, being of hyper sensitive nature, for which, the accused persons cannot be held guilty.

36. Thus, we are of the considered opinion that the view 30 Neutral Citation No. (2024:HHC:9092-DB) taken by the trial Court while acquitting the accused persons is a reasonable view based on the evidence on the record and the same cannot be said to be perverse or contrary to the material on record.

.

37. In view of what has been discussed hereinabove, no interference in the judgment of acquittal dated 21.04.2014, passed by the learned Additional Sessions Judge-II, Kangra at Dharamshala, District Kangra, H.P., in Sessions Case (RBT) No. 5- G/VII/13/09, is required, as the same is the

result of proper appreciation of evidence and law. The appeal, which sans merits, deserves dismissal and is accordingly dismissed. Bail bonds are discharged.

In view of the above, the appeal is disposed of, so also pending application(s), if any.

(Tarlok Singh Chauhan) Judge (Sushil Kukreja) Judge 25th September, 2024 (virender)